

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS****ST CLAIR STEWARD,****Plaintiff,****-against-****CITY OF NEW YORK; DETECTIVE CHRISTOPHER
DANTONIO, DETECTIVE CHARLES VENTICINQUE,
DETECTIVE MICHAEL CERULLO, SERGEANT
CHRISTOPHER BARBIERI, LIETUENANT NICHOLAS
VANDYKE, LIEUTENANT STEPHEN FABER; QUEENS
DISTRICT ATTORNEY CHRISTOPHER ANTONINO, and
JANE DOE 1 through 10, individually (the names John and Jane
Doe being fictitious, as the true names are presently unknown),****Defendants.****SUMMONS****DOCKET
714217/2019****Plaintiff designates
Queens County as the
place of trial.****The basis of venue is:
The county in which the
action arose per CPLR
504(3)****The cause of action
arose in Queens County
and is against the City of
New York****To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: February 18, 2021**Respectfully,**

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LIETUENANT NICHOLAS VANDYKE

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LIEUTENANT STEPHEN FABER

105th Precinct

2-08 222nd St

Queens Village, NY 11428

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS****ST CLAIR STEWARD,****Plaintiff,****-against-**

CITY OF NEW YORK; DETECTIVE CHRISTOPHER DANTONIO, DETECTIVE CHARLES VENTICINQUE, DETECTIVE MICHAEL CERULLO, SERGEANT CHRISTOPHER BARBIERI, LIETUENANT NICHOLAS VANDYKE, LIEUTENANT STEPHEN FABER JOHN; QUEENS DISTRICT ATTORNEY CHRISTOPHER ANTONINO, and JANE DOE 1 through 10, individually (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.**FIRST AMENDED
COMPLAINT
714217/2019**

Plaintiff ST CLAIR STEWARD, by his attorney ABRAHAM RUBERT-SCHEWEL of TIN FULTON WALKER & OWEN, PLLC, alleges the following:

PRELIMINARY STATEMENT

1. Plaintiff St Clair Steward ("Steward") served over two and a half months in custody on Rikers Island after being wrongfully arrested and charged with an attempted murder he did not commit.

2. Plaintiffs bring this action for compensatory damages and punitive damages pursuant to the common law of the State of New York, for violations of their rights under the New York Constitution; and pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his rights under the Constitution of the United States of America.

JURISDICTION AND VENUE

3. Jurisdiction lies in the Supreme Court of New York, County of Queens, as all Defendants resided in the State of New York, and the amount in controversy exceeds the jurisdictional amounts of all lower courts.

4. Venue is proper under CPLR § 504 in the County of Queens as it is the county where this cause of action arose.
5. Plaintiff complied with the requirements of New York General Municipal Law Section 50-H by serving a notice of claim on the City of New York dated October 23, 2018.
6. Steward was deposed by the City of New York pursuant to 50-H on February 25, 2018.
7. The City of New York has not adjusted this claim.

JURY DEMAND

8. Plaintiff respectfully demands a trial by jury of all issues in this matter.

THE PARTIES

9. Plaintiff is a resident of the of the State of New York.
10. Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
11. The City operates the New York City Police Department ("NYPD"), a department or agency of defendant City of New York responsible for the employment, operation, appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein; the City also operates the Queens District Attorney's Office ("QDAO"), a department or agency of defendant City of New York responsible for the operation, appointment, training, supervision, promotion and discipline of Queens District Attorneys and supervisory District Attorneys, including the individually named defendants herein; the City is liable for the individual NYPD Defendants and the QDAO Defendant under the doctrine of *respondeat superior*.
12. All Individual Defendant NYPD Officers, listed below, are entitled to indemnification by the City of New York under New York law for any liability arising from conduct described herein.

13. Defendant Detective Christopher Dantonio (“Dantonio”), 105th Precinct, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

14. Defendant Detective Charles Venticinque (“Venticinque”), 105th Precinct, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

15. Defendant Detective Michael Cerullo (“Cerullo”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

16. Sergeant Christopher Barbieri (“Barbieri”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

17. Defendant Lieutenant Stephen Faber (“Faber”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes,

ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD.

He is sued in his individual capacity.

18. Defendant Lieutenant Nicholas Vandyke (“Vandyke”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

19. Defendant ADA Christopher Antonino was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the QDAO, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the QDAO. He is sued in his individual capacity.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

The Attempted Robbery and Attempted Murder of K.W.

20. On January 30, 2018, at approximately 3:15 p.m., K.W. was sitting in his car in Queens, New York.

21. K.W. was approached by an unknown perpetrator (“perpetrator #1”), on his passenger side, who asked him for directions.

22. A second perpetrator named Gregory Campbell¹ (“Campbell or perpetrator # 2”), also unknown to K.W., approached the driver’s side door.

23. As K.W. was speaking to perpetrator #1, Campbell opened the driver’s side door.

¹ As stated *infra* DNA evidence found on the handle of the driver’s side door matched Gregory Campbell. He was arrested in August of 2019 and was convicted and sentenced on a string of related robberies.

24. Campbell's upper body, as he opened the door, was obstructed from K.W.'s view by the top of his car.

25. K.W., however, was able to see a firearm in Campbell's waistband and immediately drove away from the perpetrators.

26. Campbell fired his gun twice, striking the door of K.W.'s car as he fled.

NYPD Officers Collect DNA and Fingerprints

27. NYPD Officers arrived at the scene of the shooting.

28. They collected fingerprints and a DNA sample from the door handle of the vehicle.

29. They also collected a DNA sample from Keshar Williams.

K.W. Informs Detectives That He Could Not Have Clearly Seen the Shooter

30. Detectives Michael Cerullo, Christopher Dantonio and Charles Venticinque interviewed K.W. on January 30, 2018.

31. K.W. informed the Detectives that he had gotten a clear look at perpetrator # 1 while he had been asking for directions.

32. However, on information and belief, K.W. informed the Detectives that he did not get a clear look at Campbell's face (the shooter), because when Campbell opened driver's side door he was standing up and his face was obstructed from view.

33. K.W. informed the detectives that he fled in his vehicle as soon as he saw the gun in Campbell's waistband.

K.W. Makes an Unreliable Mug Shot Photo Identification

34. Detective Venticinque and Detective Dantonio, aware that K.W. fled immediately upon seeing the gun, and did not get a good look at the shooter, still conducted a mug shot photo viewing session with K.W. on January 30, 2018, at approximately 5:13 p.m.

35. Detectives Venticinque and Dantonio, instead of conducting two separate mug shot viewings, conducted a single mug shot viewing for both alleged perpetrators.

NYPD PhotoManager Produces 2788 Potential Matches of the Alleged Perpetrators

36. Detective Venticinque and Dantonio used “PhotoManager” to show K.W. an assortment of black males, between 5’8 and 6’1, who resided in or near the 105th precinct.

37. PhotoManager produced 2788 “Matches” within these search parameters.

38. After viewing approximately 30 of the 2788 images, K.W. selected the image of St. Clair Steward as someone who may have resembled the shooter.

39. Detective Venticinque and Dantonio did not take an audio or video recording of the mug shot photo viewing session.

40. Detective Venticinque and Dantonio failed to record any notes on K.W.’s level of uncertainty in his identification.

41. Detective Venticinque and Dantonio failed to inform the Queens District Attorney of K.W.’s limited view of the shooter.

K.W. Provides Detectives with Video Footage Proving he Could not Have Reliably Observed the Face of the Shooter

42. Detective Dantonio, on January 31, 2018, at 4:30 p.m., re-interviewed K.W.

43. K.W. provided Dantonio with video footage of the shooting taken from the inside of his vehicle.

44. The footage showed K.W. giving directions to perpetrator #1.

45. Perpetrator # 1 is on K.W.’s right, the passenger side of the car.

46. The shooter, then off camera, attempts to open the driver’s side door.

47. K.W. looks to his left for less than a second, and then speeds away.

48. The footage does not show the shooter’s face.

49. The footage makes clear that K.W. could not have gotten a clear or extended look at the shooter—who we now know, based on DNA evidence, was Gregory Campbell, not St Clair Steward.

50. Detective Dantonio did not give or show this video to the Queens District Attorney.

Steward is Arrested

51. Based solely on the selection of Steward as someone who resembled the shooter, Detective Dantonio, Detective Venticinque and Sergeant Barbieri, on January 30, 2018, at 6:30 p.m., decided to issue an I-card for Steward's arrest.

52. Steward was arrested at his home by Detectives on January 31, 2018, at 7:00 a.m.

53. Officers transferred him to the detective squad at the 105th precinct.

Steward's DNA Sample is Taken but not Compared to the DNA on the Car Door Handle

54. Detective Dantonio escorted Steward to an interview room and provided him a Styrofoam cup to drink out of.

55. Detective Dantonio kept Steward's cup for a DNA sample.

56. On February 2, 2018, Dantonio sent all DNA Samples to the NYPD OCME lab for testing.

57. Dantonio requested that K.W.'s DNA be compared to the DNA on the door handle.

58. Dantonio requested that Steward's DNA be analyzed and ran through the DNA database.

59. Dantonio *did not request that Steward's DNA be compared to the DNA left by the shooter on the car door handle.*

ADA Christopher Antonio Conspires with Detective Dantonio and Sergeant Barbieri to Delay Steward's Arraignment

60. Detective Dantonio received a warrant, on February 1, 2018, to search Steward's house.

61. QDA Christopher Antonino, along with Detective Dantonio and Sergeant Barbieri intentionally conspired to delay Steward's arraignment to conduct the search of Steward's house, while he was not home.

No Evidence is Found After a Search of Steward's House

62. At 6 p.m. on February 1, 2018, Detective Dantonio, along with other NYPD officers, executed a warrant at Steward's house.

63. Detectives found no gun at Steward's house.

64. Detectives found no clothes that matched the perpetrators.

65. Detectives found no evidence related to the crime.

66. No forensic or other evidence ever connected Steward with the attempted robbery or murder.

Steward Is Charged with Attempted Robbery and Attempted Murder

On Approximately February 3, 2018, Steward was charged with the Attempted Robbery and Attempted Murder of K.W.

67. His bail was set at \$200,000 and he was remanded to Riker's Island.

DNA From the Driver's Side Door Does Not Match K.W.

68. On March 27, 2018, Detective Dantonio received an OCME report indicating that the DNA on the door handle was from a male, but did not match K.W.

69. Because Dantonio did not request a comparison, the OCME report did not compare Steward's DNA to the DNA found on the car door handle.

Two Months After Steward's Arrest and Incarceration, Dantonio Requests a Comparison of Steward's DNA to the DNA on the Car Door Handle

70. On April 2, 2018, Detective Dantonio requested the OCME lab compare Steward's DNA to the DNA on the car door handle.

71. Dantonio made this request after Steward had been incarcerated for over two months on Rikers Island.

72. And over two months since Dantonio had initially taken Steward's DNA sample.

DNA From the Driver's Side Door Matches Gregory Campbell on April 5, 2018

73. On April 5, 2018, DNA gathered from the driver's side door handle of K.W.'s vehicle came back as a match for Gregory Campbell, a known felon.

74. Individual Detectives Dantonio and Venticinque, Sergeant Barbieri, and Lieutenant Nicholas VanDyke and Lieutenant Stephen Faber did not forward this information to the Queens District Attorney.

Steward's DNA does not Match the DNA on the Door Handle and he is Released on April 18, 2018

75. On April 16, 2018, Detective Dantonio received an OCME report showing Steward's DNA did not match the DNA found on the door handle of K.W.'s vehicle.

76. This OCME report, exonerating Steward, was received by Dantonio 14 days after he initially requested it on April 2, 2018.

77. On April 18, 2018, Steward was released from Riker's Island.

Campbell is Charged and Sentenced

78. On or about August 3, 2018, Gregory Campbell was arrested on an unrelated robbery in Queens.

79. Campbell's DNA was found on the scene of the August 3 robbery, and the attempted robbery of K.W.

80. Campbell pled guilty and is currently serving a sentence for Attempted Robbery in Bare Hill Correctional Facility.

Steward's Case is Dismissed

81. Steward, even after his release on April 18, 2018, made numerous court appearances.

82. In September of 2019 Steward's case was dismissed by the Queens District Attorney.

INJURIES AND DAMAGES

83. This action seeks damages on behalf of Plaintiff for the loss of liberty, extraordinary emotional pain and suffering, and injuries to his person, that Plaintiff was forced to endure as a consequence of Defendants' decidedly wrongful actions.

84. As a result of Plaintiff's wrongful arrest and unjust imprisonment, despite their actual innocence of the crime, Plaintiff was incarcerated for over two years.

85. Plaintiff has suffered, and continue to suffer, severe and ongoing damages, specifically including lost educational and professional, physical pain and injuries, inadequate medical care, serious psychological and emotional damage, loss of familial relationships, and loss of quality of life.

86. The acts and omissions of Defendants entitle Plaintiff to compensatory and punitive damages.

FIRST CLAIM:

MALICIOUS PROSECUTION or PROSECUTION WITHOUT PROBABLE CAUSE UNDER SECTION 42 U.S.C. 1983 Against the City and all NYPD Defendants

87. Plaintiff repeats, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

88. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

89. Detectives Michael Cerullo, Christopher Dantonio and Charles Venticinque, despite knowing that probable cause did not exist to arrest and prosecute Plaintiff, intentionally, recklessly, and with malice caused Plaintiff to be arrested, held on bail, and prosecuted. While malice is an element of this claim under state law, it is not necessary to prove malice for the constitutional rights violation.

90. K.W., on information and belief, informed Detectives that he did not get a clear look at the shooter but could only generally identify him.

91. Detectives knew that K.W. could not have seen the face of the shooter after they viewed the surveillance footage from his car.

92. K.W., on information and belief, told Detectives that he could not identify the assailant with any level of certainty because his view had been obstructed.

93. Detectives failed to forward the surveillance video to the QDA, or to tell the QDA about K.W.'s inability to reliably identify the assailant.

94. Detectives arrested Steward even though they knew he was not responsible for the attempted murder, and had no physical evidence tying him to the murder.

95. The Detectives continued the prosecution of Steward even after viewing surveillance footage that vitiated any probable cause that existed from K.W.'s unreliable identification.

96. The Detectives continued the prosecution of Steward even after receiving a report which confirmed the presence of Campbell's DNA, a known felon, on the door handle.

97. Detectives failed to forward this DNA evidence, exonerating Steward, to the QDA.

98. Detectives withheld *Brady* information as well as information that vitiated probable cause from the QDA.

99. Steward is innocent.

100. The prosecution finally terminated in his favor in September of 2018.

101. As a direct and proximate result of the Defendants acts, Plaintiff was wrongfully arrested and imprisoned, causing him to suffer the injuries and damages described above.

102. Defendant the City of New York is liable under the doctrine of *respondeat superior* for the unlawful conduct of its employees, the Individual Detectives.

SECOND CLAIM:

FAILURE TO INTERVENE Against the City and all NYPD Defendants

103. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

104. Michael Cerullo, Christopher Dantonio and Charles Venticinque and other John and Jane Doe 1-10 that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

105. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

106. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM:

OVER DETENTION IN VIOLATION OF THE FOURTH AMENDMENT UNDER 42 U.S.C § 1983 Against the City all Individual NYPD Defendants and Queens DA Christopher Antonino

107. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

108. Plaintiff was arrested on January 31, 2018 at approximately 7 a.m. pursuant to the directive of Detectives Michael Cerullo, Christopher Dantonio, Sergeant Barbieri, and Charles Venticinque.

109. Plaintiff was taken to a holding cell in the Detective Squad at the 105th precinct.

110. Detectives Michael Cerullo, Christopher Dantonio, Charles Venticinque and Sergeant Barbieri intentionally sought to delay Plaintiff's arraignment in order to execute a search warrant of Plaintiff's home.

111. Detective Dantonio, at his deposition, testified that Queen's District Attorney Christopher Antonino, at the request of Dantonio and Barbieri, made the final decision to delay Plaintiff's arraignment.

112. QDA Antonino decided to delay Plaintiff's arraignment so the Detectives could execute a search of Plaintiff's home before he was arraigned and possibly released.

113. Plaintiff's arraignment was postponed until February 2, 2018, at 10 a.m., approximately 51 hours after his arrest.

114. Because ADA Antonino delayed Plaintiff's arraignment for the investigatory purpose of executing a search warrant on Plaintiff's home, he is not entitled to absolute immunity. *See, e.g., Simon v. City of New York*, 727 F.3d 167, 172 (2d Cir. 2013).

115. By failing to arraign plaintiff within 48 hours Defendants failed to comply with *Gerstein v. Pugh*, 95 S. Ct 854 (1975) and the clear mandate of *City of Riverside v. McLaughlin*, 500 U.S. 44 (1991):

Where an arrested individual does not receive a probable cause determination within 48 hours, the calculus changes. In such a case, the arrested individual does not bear the burden of proving an unreasonable delay. Rather, the burden shifts to the government to demonstrate the existence of a bona fide emergency or other extraordinary circumstance. The fact that in a particular case it may take longer than 48 hours to consolidate pretrial proceedings does not qualify as an

extraordinary circumstance. Nor, for that matter, do intervening weekends. A jurisdiction that chooses to offer combined proceedings must do so as soon as is reasonably feasible, but in no event later than 48 hours after arrest.

Id.

116. QDA Antonino as an attorney was aware of this case law and the unlawfulness of his actions.

117. By virtue of the aforementioned acts, the Individual Detectives, Sergeant Barbieri, and QDA Antonino are liable to Plaintiff for violating his Fourth Amendment right under 42 U.S.C. §§ 1983 the U.S. Constitution and his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

FOURTH CLAIM:

DUE PROCESS UNDER 42 U.S.C § 1983 Against the City all Individual NYPD Defendants

118. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

119. Detectives Michael Cerullo, Christopher Dantonio and Charles Venticinque violated Plaintiff's due process rights by using a suggestive mug shot procedure when they knew that K.W., the victim could not identify the shooter.

120. Detectives Michael Cerullo, Christopher Dantonio and Charles Venticinque continued to prosecute Plaintiff in violation of his due process rights even after they viewed the video footage showing K.W. could not have gotten a clear look at the shooter, and then failed to forward this information to the QDA. *See Bermudez v. City of New York*, 790 F.3d 368, 374–76 (2d Cir. 2015); *Dufort v. City of New York*, 874 F.3d 338, 353–54 (2d Cir. 2017).

FIFTH CLAIM:

RUSSO AND FOURTH AMENDMENT VIOLATION

UNDER 42 U.S.C § 1983
Against the City all Individual NYPD Defendants

121. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

122. Detectives Michael Cerullo, Christopher Dantonio and Charles Venticinque and, Sergeant Barbieri, Lieutenant Stephen Faber and Lieutenant Vandyke violated Plaintiff's rights under the Fourth Amendment and *Russo v. City of Bridgeport*, 479 F.3d 196, 208 (2d Cir. 2007).

123. The officers unnecessarily prolonged Plaintiff's detention by failing to compare Plaintiff's DNA to the DNA of the shooter, which was found on the door handle of the car.

124. Detective Dantonio first possessed these DNA samples on January 31, 2018, but failed to request a comparison of the two samples until April 2, 2018, after Plaintiff had been incarcerated on Rikers Island for over two months.

125. Because of this delay, St Clair Steward was not released until after the DNA comparison, on April 16, 2018, proved his DNA was not present on the car door handle.

126. A second violation of Plaintiff's *Russo* rights occurred when on April 5, 2018 DNA gathered from the driver's side door handle of K.W.'s vehicle came back as a match for Gregory Campbell, a known predicate, and the Detectives continued the prosecution of Plaintiff and failed to forward this information to the QDA. *See Russo v. City of Bridgeport*, 479 F.3d 196, 208 (2d Cir. 2007).²

SIXTH CLAIM

² A recent line of decisions establishes that a government officer's indifference to a pretrial detainee's innocence will support a damages award under § 1983 if the plaintiff proves that: (i) he was wrongfully incarcerated for an unreasonable length of time; (ii) the defendant-officer, by expending reasonable cost and effort, could have conclusively established the plaintiff's innocence; (iii) the defendant-officer failed to do so; and (iv) the defendant-officer acted with a culpable mental state—i.e., with intent to unlawfully detain the plaintiff or deliberate indifference to his constitutional rights. *Russo v. City of Bridgeport*, 479 F.3d 196, 210–11 (2d Cir. 2007).

**42 U.S.C. § 1985/ 1983 (Civil Rights Conspiracy)
Against All Defendants**

127. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

128. Defendants, including QDA Antonio, agreed among themselves and with other individuals to act in concert in order to deprive Plaintiff of his clearly established rights, including but not limited to his right to a timely arraignment, and to be free from malicious prosecution, prolonged detention, and due process.

129. In furtherance of the conspiracy Defendants engaged in and facilitated numerous overt acts, including, planning to intentionally delay plaintiff's arraignment in order to conduct a search of his home without him present.

130. As a direct and proximate result of the deprivation of his constitutional rights, Steward suffered the injuries and damages set forth above.

133. Defendants are therefore liable for Plaintiff's injuries under 42 U.S.C. §§ 1985 and 1983.

134. Defendants' actions were willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SEVENTH CLAIM:

**MALICIOUS PROSECUTION UNDER
NEW YORK STATE LAW
(Against All NYPD Defendants)**

131. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

132. The Individual Detectives caused the commencement and continuance of criminal proceedings against Plaintiff.

133. There was no probable cause for criminal proceedings against Plaintiff for the attempted murder or robbery and the Individual Detectives knew or should have known as much.

134. The Individual Detectives acted with actual malice.

135. This is evidenced through their failure to provide video to the QDA which vitiated probable cause.

136. The criminal proceedings against Steward terminated in his favor when all charges against him were dismissed in September 2018.

137. Defendant the City of New York is liable under the doctrine of *respondeat superior* for the unlawful conduct of its employees, the Individual Detectives.

EIGHTH CLAIM:

MONELL LIABILITY

Against the City of New York for the Unconstitutional Use of Mug Shot Photo Search and Identification

138. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

139. Prior to and during Steward's arrest and prosecution the City knew that Mug Shot searches were being used regularly by the NYPD, were inherently unreliable, and were likely to cause false arrests, wrongful prosecutions, and wrongful convictions. *See Joseph Goldstein, Jailing the Wrong Man: Mug Shot Searches Persist in New York Despite Serious Risks*, N.Y. Times, Jan. 5, 2019 (available at <https://www.nytimes.com/2019/01/05/nyregion/nypd-mug-shots-false-identification.html>) (“[O]pen-ended photo searches also increase the likelihood of ensnaring an innocent person, according to studies and experts in eyewitness identification. The method has few safeguards to protect against a false identification and can lead police to focus on the wrong person from the outset of an investigation.”).

140. Scientific studies as far back as 2002 have shown that mugshot searches lead to false identifications as much as 50% of the time they are conducted. *See Eyewitness Recognition Errors, Memory & Cognition*, 2002, 30(8), 1219-1227 (“Therefore, the data for both mugbooks were pooled. In terms of overall mugshot choosing rates, 57% of those exposed to mugshots [which did not contain the perpetrator] chose a foil from the mugbook selection. The false choosing rates (collapsed across conditions) for the young and the older adults who were given the mugshot identification task were 42% and 71%, respectively.”); *see also See Jailing the Wrong Man*, N.Y. Times (“‘If someone was abducted and spent two days with the kidnapper, who was unmasked, show them pictures,’ said Gary Wells, a psychologist at Iowa State University and a pioneer in the field of eyewitness identification. But for general use, he said, ‘I think it is a huge problem.’”).

141. The City has been conducting mug shot searches of some sort for over 150 years. *Id.*

142. Across the country, many police departments **no longer utilize mug shot searches as a policing tool because of the high probability of misidentification.** *Id.* (“Many of the nation’s other large police departments — including Chicago, Los Angeles, Houston, Washington, Dallas and Miami-Dade — said they do not rely on the technique, a New York Times survey shows.”).

143. In other jurisdictions detectives “do not show booking photos to witnesses until they have a suspect in mind” and only then place the “suspect’s [mug shot] among photos of at least five “fillers” — people who fit the description but are known to be innocent.” *Id.*

144. Using mug shot searches often ensnares unsuspecting and entirely innocent people by showing their “mug shots” from prior, often sealed arrests, to victims who are often entirely unknown to them. *See Eli Hager, Your Arrest Was Dismissed But It’s Still In A Database,*

Marshall Project (available at <https://www.themarshallproject.org/2019/07/18/your-arrest-was-dismissed-but-it-s-still-in-a-police-database>) (“Yet here they were—old arrest reports, details about J.J.’s appearance, addresses where he’d lived and mugshots of him that should have been deleted . . . contributing to the case against him and to his eventually spending a year in jail on Rikers Island.”).

145. The National Police Foundation, a non-profit dedicated to police advancement through innovation and science, recognized that “injustices” will continue as long as police departments “rely on science [in areas such as mug shots and eyewitness identification] that is well over a decade old.” James Burch, *Policing Requires Science*, National Police Foundation, N.Y. Times (available at <https://www.nytimes.com/2019/01/13/opinion/letters/policing-science.html>).

146. Detectives Michael Cerullo, Christopher Dantonio and Charles Venticinque were all aware that K.W.’s view of the shooter was obstructed.

147. The Detectives still, however, conducted a mug shot search using PhotoManager which produced 2788 potential matches.

148. Detectives arrested and continued the prosecution of Steward even though they knew he was not responsible for the attempted murder, and had no physical evidence tying him to the murder.

149. The Detectives continued the prosecution of Steward even after viewing surveillance footage that vitiated any probable cause that existed from K.W.’s unreliable identification.

150. The Detectives’ reliance on this faulty identification, even in the face of directly conflicting evidence, cost Steward two and a half months of his life.

151. The NYPD chief of detectives admitted in a New York Times interview that “[m]ug shots are still a piece of the puzzle” and continue to be used today. *Jailing the Wrong Man*, N.Y. Times, Jan. 5, 2019.

152. Individually and collectively, the violations by Detectives Michael Cerullo, Christopher Dantonio and Charles Venticinque of Plaintiff’s constitutional rights and their prolonging of Plaintiff’s injuries were directly, foreseeably, proximately, and/or substantially caused by conduct chargeable to Defendant City of New York amounting to deliberate indifference to the constitutional rights of persons, including Plaintiff, subject to investigation and prosecution by the NYPD.

153. The City represents such officers and employees in judicial proceedings and indemnifies them because they are City officials.

154. Under the principles of municipal liability for federal civil rights violations, the City or its authorized delegates have final managerial responsibility for training, instructing, supervising, and disciplining attorneys and other employees of the NYPD regarding their conduct in the prosecution of criminal matters, including, but not limited to:

- a. their constitutional obligation not to create or to otherwise use false, misleading, or unreliable evidence during criminal proceedings, including but not limited to identification procedures, such as mug shot searches known to cause misidentifications.
- b. their constitutional obligation to not use identification procedures, such as mug shot searches, when eyewitnesses have expressed, or other evidence shows a witnesses inability to have accurately viewed an event.

155. The City and the NYPD has maintained a policy, custom, or practice of deliberate indifference to past violations by NYPD employees of these constitutional obligations, to the risk of future such violations by NYPD employees, and the obvious need to eliminate the use

of mug shot searches in its entirety, or train, supervise, and discipline NYPD employees with respect to these obligations.

156. The aforesaid deliberate or de facto policies, procedures, regulations, practices and/or customs, including the failure to properly instruct, train, supervise, and/or discipline employees with regard thereto, were implemented or tolerated by policymaking officials for Defendant City, including, but not limited to, the NYPD and his delegates, who knew:

- a. to a moral certainty that such policies, procedures, regulations, practices, and/or customs concern issues that regularly arise in the investigation and prosecution of criminal cases, such as eyewitness misidentification through mug shot searches;
- b. that ending the practice of mug shot searches will decrease the likelihood of misidentification and wrongful convictions;
- c. that employees facing such issues have strong incentives to make the wrong choices, especially given the pressure the NYPD places on detectives to make arrests;
- d. that the wrong choice by municipal employees concerning eyewitness identification issues will frequently cause the deprivation of the constitutional rights of the accused and cause him constitutional injury; and
- e. that employees of the NYPD had a pattern and practice of using mug shot searches as the lone basis for arrests and probable cause.

157. The aforementioned policymaking officials had the knowledge and the notice alleged in the preceding paragraph based upon:

- a. numerous credible allegations in the form of secondary sources³ and scientific data, showing that the use of mug shot searches caused wrongful arrests, prosecutions and wrongful convictions in many cases.

³ See *Cordero v. City of New York*, 282 F. Supp. 3d 549, 563–64 (E.D.N.Y. 2017) (“Newspaper articles, reports, and other documents may provide sufficient documentary evidence for *Monell* liability.”).

158. During all times material to this complaint, the City and the NYPD, owed a duty to the public at large and to Plaintiff to implement policies, procedures, customs, and practices sufficient to prevent, deter, and avoid conduct by subordinates that violate the constitutional rights of criminal suspects or defendants and of other members of the public.

159. However, the NYPD and his designees, as policymakers for the City, knowingly and intentionally breached, or were deliberately indifferent to, this duty.

NINTH CLAIM:

**INTENTIONAL, RECKLESS, and/or NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS UNDER NEW YORK STATE LAW
(Against All Defendants)**

160. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs as if fully set forth herein, and further alleges as follows.

161. The conduct of the Individual Detectives in deliberately causing, and/or recklessly, and/or negligently disregarding the risk of wrongful arrest, prosecution, and incarceration of Plaintiffs by, among other things, (i) fabricating evidence, (ii) withholding exculpatory material and impeachment evidence, (iii) lying to prosecutors, the court, the defense, and (iv) causing Steward to be maliciously prosecuted for crimes he did not commit was extreme and outrageous and directly and proximately caused the grievous injuries and damages set forth herein.

162. The Individual Detectives actions were in violation of clearly established law, and no reasonable police officer in 2018 or thereafter would have believed the actions of the Individual Detectives to be reasonable or lawful.

163. Defendant the City of New York is liable under the doctrine of *respondeat superior* for the unlawful conduct of its employees, the Individual Detectives.

TENTH CLAIM:**FALSE ARREST**

164. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

165. Individual Detectives, including Detective Dantonio violated the Fourth Amendment under 42 U.S.C. § 1983 because when they arrested plaintiff without probable cause.

166. At the time of the arrest the only evidence against Plaintiff was the suggestive and unreliable mug shot identification.

167. Detectives arrested Plaintiff in an attempt to elicit a false confession and gather additional evidence against him.

168. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages alleged.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: February 18, 2021

Respectfully,



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ATTORNEY'S VERIFICATION

Abraham Rubert-Schewel, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at TIN FULTON WALKER & OWEN, PLLC, attorneys of record for plaintiff St Clair Steward I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: February 18, 2021



Abraham Rubert-Schewel
Counsel for Plaintiff